



Code: GBEA-AR
Revised/Reviewed: 7/21/21

Workplace Harassment Reporting and Procedure

Any HCCS employee who believes they have been a victim of workplace harassment may file an oral or written report consistent with this administration regulation, may file a report through the Bureau of Labor and Industries' (BOLI) complaint resolution process, or under any other available law.

Additional information regarding the filing of a report may be obtained through the administrator/principal or designee.

A complaint alleging an unlawful employment practice as described in ORS 659A.030, 659A.082 or 659A.112 or section 4 of Senate Bill 479 (2019) must be filed no later than five years after the occurrence of the alleged unlawful employment practice.

All documentation related to workplace harassment complaints may become part of the personnel file of the employee who is the alleged harasser, as appropriate. Additionally, a copy of all workplace harassment reports, complaints, and documentation will be maintained by HCCS as a separate confidential file and stored in the school office.

Investigation Procedure

The administrator/principal or designee are responsible for investigating reports concerning workplace harassment. The investigator(s) shall be a neutral party having had no involvement in the report presented. If the alleged workplace harassment involves administrator/principal, the employee may report to director of operations or human resources manager. All reports of alleged workplace harassment behavior shall be investigated.

The investigator shall:

1. Document the alleged, reported incident of workplace harassment;
2. Provide information about legal resources and counseling and support services, which may include HCCS-provided assistance services available to HCCS employee;
3. Provide a copy of the HCCS's Board policy GBEA - Workplace Harassment and this administrative regulation to the HCCS employee; and
4. Complete the following steps:

Step 1 Promptly initiate an investigation. The investigator will arrange such meetings as may be necessary to discuss the issue with all concerned parties within five working days after receipt

of the report. The parties will have an opportunity to submit evidence and a list of witnesses. All findings of the investigation, including the response of the alleged harasser, shall be reduced to writing. The investigator shall notify the complainant in writing that the investigation is concluded and if a violation of the policy was found to have occurred to the extent allowable by law. A decision reached by the administrator/principal in this step is final.

If the investigator in Step 1 was not the administrator/principal, a copy of the report, complaint, or other documentation about the incident, and the date and details of notification to the complainant of the results of the investigation, together with any other documentation related to the workplace harassment incident, including disciplinary action taken or recommended, shall be forwarded to the administrator/principal.

- Step 2 If a complainant is not satisfied with the decision in Step 1, and the investigator was not the administrator/principal, the complainant may submit a written appeal to the administrator/principal. Such appeal must be filed within 10 working days after receipt of the Step 1 decision. The administrator/principal will review the decision reached by the director of operations or human resources manager in the previous step. The administrator/principal shall provide a written decision to the complainant within 10 working days of receiving the complainant's appeal. A decision reached by the administrator/principal in this step is final.

Reports involving the administrator/principal should be referred to the Board chair on behalf of the Board. The Board chair will cause the information¹ required to be issued to the complainant as described in this administrative regulation. The Board chair shall present the complaint to the Board at a Board meeting. If the Board decides an investigation is warranted, the Board may refer the investigation to a third party. When the investigation is complete, the results will be presented to the Board. The Board may hold the hearing in executive session if the subject matter qualifies under Oregon law. The Board shall decide, within 30 days, in open session what action if any is warranted. The Board chair shall notify the complainant in writing within 10 days that the investigation is concluded and if a violation of the policy was found to have occurred to the extent allowable by law.

Follow-up Procedures

The human resource manager or designee will follow up with the HCCS employee of the alleged harassment once every three months for the calendar year following the date on which the human resource manager or designee received a report of harassment, to determine whether the alleged harassment has stopped or if the employee has experienced retaliation. The human resource manager or designee will document the record of this follow-up. The human resource manager or designee will continue follow-up in this manner until and unless the employee directs the human resource manager or designee in writing to stop.

¹ Provide information about legal resources and counseling and support services, which may include HCCS-provided assistance services available to the HCCS employee, and a copy the HCCS's Board policy GBEA - Workplace Harassment and this administrative regulation to the HCCS employee.

Other Reporting Options and Filing Information

Nothing in this policy prevents an employee from filing a formal complaint with BOLI or the Equal Employment Opportunity Commission (EEOC); or if applicable, the U.S. Department of Labor (USDOL) Civil Rights Center.

Nothing in Board policy GBEA - Workplace Harassment or this administrative regulation prevents any person from seeking remedy under any other available law, whether civil or criminal.

An employee or claimant must provide advance notice of claim against the employer as required by ORS 30.275.

Filing a report with the U.S. Department of Labor (USDOL) Civil Rights Center.

An employee whose agency receives federal financial assistance from the USDOL under the Workforce Innovation and Opportunity Act, Mine Safety and Health Administration, Occupational Safety and Health Administration, or Veterans' Employment and Training Service, may file a complaint with the state of Oregon Equal Opportunity Officer or directly through the USDOL Civil Rights Center. The complaint must be written, signed and filed within 180 days of when the alleged discrimination or harassment occurred.

Hope Chinese Charter School
3500 SW 104th Ave, Beaverton OR 97291-0016 | Ph. 971-226-7500

WORKPLACE HARASSMENT REPORTING OR COMPLAINT FORM

Name of person making report/complainant: _____

Position of person making report/complainant: _____

Date of complaint: _____

Name of alleged harasser: _____

Date and place of incident or incidents: _____

Description of alleged misconduct: _____

Name of witnesses (if any): _____

Evidence of workplace harassment, i.e., letters, photos, etc. (attach evidence if possible): _____

Any other information: _____

I agree that all of the information on this form is accurate and true to the best of my knowledge.

Signature: _____

Date: _____

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WITNESS DISCLOSURE FORM

Name of Witness: _____

Position of Witness: _____

Date of Testimony/Interview: _____

Description of Instance Witnessed: _____

Any Other Information: _____

I agree that all the information on this form is accurate and true to the best of my knowledge.

Signature: _____ Date: _____